

Tentative Rulings

April 21, 2025

Department 44

2:30 p.m.

*****The Tentative Rulings below are designed to eliminate unnecessary court appearances. If the Court grants a Petition and signs your order, it will be processed and placed in your will-call or deposited in the mail after Monday's calendar. If you wish to appear on your case, telephonic appearances are strongly encouraged utilizing CourtCall. Please schedule your appearance online for Department 44 at Courtcall.com or by calling 888-882-6878 (See CourtCall link under "General Information" on the Court's website). *****

CONSERVATORSHIPS

CONSERVATORSHIP OF JEREMY ERICKSON

Case Number: 24PC-0032531

This matter is on calendar for confirmation of filing of the Proof of Service of Notice of Conservatee's Rights, Conservatorship Care Plan, Inventory and Appraisal, and proof of service of the Notice of Filing of the Inventory and Appraisal. The Conservatorship Care Plan and Inventory and Appraisal have been filed, and are accepted by the Court. The conservator is still required to file Proof of Service of Notice of Conservatee's Rights, and proof of service of the Notice of Filing of the Inventory and Appraisal.

This matter is continued to **Monday, May 5, 2025, at 2:30 p.m. in Department 44** for Confirmation of Filing of the Proof of Service of Notice of Conservatee's Rights, and proof of service of the Notice of Filing of the Inventory and Appraisal. If the documents cannot be filed before the continued hearing date, the court may issue an Order to Show Cause Re monetary sanctions. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF GRETA GIVLER

Case Number: 23PC-0032165

This matter is on calendar for further proceedings on an Amended Petition to Address Actions of the Prior Power of Attorney, for Approval of a Reconstructed Account, and for Damages for Elder Abuse. The matter has not been properly noticed, as Lydia Giardetti is represented by counsel, and there is no proof of service on file showing service was made on the attorney of record. Respondent has also not been properly noticed. The Petition seeks monetary damages and therefore, the matter must be served on respondent in the manner for serving summons. Service by mail is insufficient to obtain jurisdiction over the respondent. The Court notes that citations previously issued for prior hearing dates, but there has never been a proof of personal service filed as to any notice or Petition on Respondent. The Court has previously raised this issue regarding obtaining jurisdiction over respondent. Finally, the Petition fails to sufficiently allege the necessary facts to warrant relief. Petitioner's allegations are based on information and that "with a reasonable opportunity for discovery the evidence will show" that Respondent wrongfully took the funds. The Court cannot grant relief without sufficient factual allegations of the underlying damages. It is likely that an evidentiary hearing will be necessary to establish the amount of damages. This matter is continued to **Monday, June 2, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner shall file and timely serve a

new Notice of Hearing for the continued hearing date. Respondent must be personally served with the Notice of Hearing and Amended Petition. **No appearance is necessary on today's date.**

CONSERVATORSHIP OF ARGENT HALE

Case Number: 23PC-0032036

This matter is on calendar for a Petition for Approval of Amended First and Final Account and Report of Conservator, and Petition for Fees. The matter has been properly noticed, with proof of service on file. The Petition fails to include a full accounting. The accounting only contains a summary of the account. No schedules are attached. Additionally, counsel's fees seem excessive; specifically, the number of hours to prepare the accounting, which is not a complete accounting. The request for attorney's fees is subject to being reduced to a reasonable number of hours based on the activities listed. In addition, the conservator's request for fees includes a period of time that overlaps with the prior order granting her conservator's fees. This matter is continued to **Monday, June 16, 2025, at 2:30 p.m. in Department 44** for further proceedings on the Amended Petition. Petitioner file and timely notice an Amended Petition which includes a full accounting including all schedules. The Court will retain the lodged account statements for the continued hearing date. The hearing currently scheduled for April 28, 2025, for receipt of an amended final accounting is hereby **VACATED**. **No appearance is necessary on today's calendar.**

CONSERVATORSHIP OF MORGAN HAUPTMAN

Case Number: 25PC-0032785

This matter is on calendar for hearing on a Petition for Appointment of a Conservator of the Person. The matter has been properly noticed, with proof of service on file. The Citation has been filed with proper proof of service. Counsel has been appointed for the Conservatee. No objections have been raised. The Court has reviewed the Court Investigator's report, filed April 3, 2025, which recommends granting the Petition. The Court intends to **GRANT** the Petition, absent an appearance and objection as noted below. A proposed order was submitted and will be executed. The matter will be set for **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Care Plan and Proof of Service of Notice of Conservatee's Rights. The matter is set for **Monday, April 27, 2026, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

CONSERVATORSHIP OF BELLA LICATA

Case Number: 24PC-0032712

This matter is on calendar for further proceedings on the Second Amended Petition for Appointment of a Conservator of the Person. The matter has been properly noticed, with proof of service on file. No objections have been raised. The Court has reviewed the Court Investigator's report, filed April 3, 2025, which recommends granting the Petition. The Court intends to **GRANT** the Petition, absent an appearance and objection as noted below. A proposed order was submitted and will be executed. The matter will be set for **Monday, August 25, 2025, at 2:30 p.m. in Department 44** for confirmation of filing of the Care Plan and Proof of Service of Notice of Conservatee's Rights. The matter is set for **Monday, April 27, 2026, at 2:30 p.m. in Department 44** for Annual Review. **An appearance is necessary on today's calendar only if there is an objection by the Public Defender's office.**

CONSERVATORSHIP OF PETER MITCHELL

Case Number: 24PC-0032302

This matter is on calendar for confirmation of filing the Final Account and Report. Nothing has been filed since the last hearing. This matter is continued to **Monday, June 2, 2025, at 2:30pm in Department 44**